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Case Number: 26PSCV02598 Hearing Date: September 23, 2026 Dept: 6

CASE

NAME: Chia

Yang Huang v. Jaguar Land Rover North America LLC, et al.

Defendants

Jaguar Land Rover North America, LLC and JLR Puente Hills LLC dba Penske Jaguar

Land Rover Puente Hills' Demurrer

TENTATIVE

RULING

The Court SUSTAINS Defendants Jaguar Land Rover North America, LLC and JLR Puente Hills LLC dba Penske Jaguar Land Rover Puente Hills' Demurrer to the First, Second, and Third Causes of Action of the Complaint with 20 days' leave to amend.

Defendants are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On July 28, 2026, plaintiff Chia Yang Huang (Plaintiff) filed this action against defendants Jaguar Land Rover North America, LLC (Manufacturer), JLR Puente Hills LLC dba Penske Jaguar Land Rover Puente Hills (Dealer) (collectively, Defendants) and Does 1 through 10, alleging causes of action for Magnuson-Moss Warranty Act, violation of Business and Professions Code § 17200, and negligent repair.

On August 27, 2026, Defendants demurred to the Complaint. On September 16, 2026, Plaintiff opposed the demurrer. No reply to Plaintiff's opposition was on file as of the date this tentative ruling was prepared.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

A demurrer can be utilized where the "face of the complaint" itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The "face of the complaint" includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 ["[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits"].)

A

demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES

Plaintiff untimely filed the opposition on

September 16, 2026, when it was due by September 10, 2026. (Code Civ. Proc., § 1005, subd. (b).) The Court exercises its discretion to still

consider the opposition but admonishes Plaintiff to comply with the Code of Civil Procedure going forward. (See Cal.

Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

DISCUSSION

Meet and Confer

Per Code of Civil Procedure section 430.41, subdivision (a), Defendants were required to meet and confer in person, by telephone, or by video conference before bringing this demurrer. (Code Civ. Proc., § 430.41, subd. (a).) Defendants failed to meet and confer using these methods. (Roth Decl., ¶ 2.) Nevertheless, the Court may not overrule a demurrer for failure to adequately meet and confer. (Code Civ. Proc., § 430.41, subd. (a)(4).) The Court admonishes Defendants to comply with the Code of Civil Procedure going forward.

First Cause of Action – Magnuson-Moss Warranty Act

“[A] consumer who is damaged by the failure of a supplier, warrantor, or service contractor to comply with any obligation under this chapter, or under a written warranty, implied warranty, or service contract, may bring suit for damages and other legal and equitable relief...” (15 U.S.C., § 2310, subd. (d)(1).)

Defendants demur to the First Cause of

Action for Magnuson-Moss Warranty Act on the grounds that the Complaint fails to allege facts sufficient to state a cause of action. Defendants argue that this

cause of action fails because the Magnuson-Moss Warranty Act creates no independent warranty obligations and is derivative of state warranty law, so it cannot survive without a viable underlying state-law warranty claim. Defendants contend the only available state-law predicate would be the Song-Beverly Consumer Warranty Act, whose refund-or-replace protections apply solely to a “new motor vehicle.” Relying on *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*), Defendants assert that the used, non-certified pre-owned 2020 Jaguar I-PACE is not a “new motor vehicle” because it was not sold with a manufacturer’s new car warranty issued at the time of purchase. Because the predicate Song-Beverly theory is barred as a matter of law, Defendants argue the derivative Magnuson-Moss claim necessarily fails. Defendants also cite *Daugherty v. Am. Honda Motor Co.* (2006) 144 Cal.App.4th 824 for the rule that failure to state a state warranty claim constitutes failure to state a Magnuson-Moss claim.

In opposition, Plaintiff responds that the Complaint alleges Manufacturer issued an express written warranty as part of the purchase transaction, that Plaintiff presented the vehicle for warrantable repairs, and that Defendants failed to conform it to that warranty. Plaintiff contends the Magnuson-Moss Warranty Act permits a consumer to enforce obligations arising from a written warranty under 15 U.S.C. section 2310, subdivision (d)(1), and that *Rodriguez* addresses only Song-Beverly’s “new motor vehicle” definition rather than eliminating other enforceable warranty obligations. Plaintiff argues that whether the warranty was enforceable and covered the repairs at issue presents factual questions that cannot be resolved against Plaintiff on demurrer.

The Court finds the Complaint fails to allege sufficient facts to state a cause of action under the Magnuson-Moss Warranty Act, but not necessarily for the reasons Defendants argued. The Complaint does allege that Manufacturer issued an express warranty with the vehicle purchase and that Manufacturer failed to repair the vehicle per the terms of the warranty. (Compl., ¶ 22.) The Complaint also never expressly alleges that Plaintiff purchased the vehicle used. (Compl., ¶ 6.) While there is a reasonable inference that Plaintiff purchased the vehicle used, that does not necessarily permit the Court to read facts into a pleading that are not there. (*Am. Tel. & Tel. Co. v. California Bank* (1943) 59 Cal.App.2d 46, 53 [“The rule of liberal construction does not, however, permit the insertion, by construction, of averments which are neither directly made nor within the fair import of those which are set forth.”] [Citation.]”.)

Moreover, Defendants misread Rodriguez. In that case, the California Supreme Court foreclosed only the manufacturer's "new motor vehicle" refund-or-replace remedy. (Rodriguez, supra, 17 Cal.5th at p. 205.) It stated that the Song-Beverly Act separately protects buyers of used goods through Civil Code section 1795.5 by imposing manufacturer-equivalent obligations, such as implied warranties of merchantability and fitness of limited duration on "a distributor or retail seller of used consumer goods in a sale in which an express warranty is given," while generally leaving the original manufacturer "off the hook." (Id. at pp. 200-201; Civ. Code, § 1795.5.) The California Supreme Court also stated that used-vehicle buyers still retain "potential remedies under the California Uniform Commercial Code and the federal Magnuson-Moss Warranty Act." (Id. at p. 205, italics added.)

Nevertheless, statutory claims must be pled with particularity. (See *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790, citing *Lopez Southern Cal. Rapid Trans. Dist.* (1985) 40 Cal.3d 780, 795 [statutory claims must be pled with particularity showing every fact essential to the relief sought under the statute].) The Complaint lacks the required specificity. The Complaint does not allege the purported vehicle defect. It only alleges in a conclusory fashion that there were defects and that Defendants failed to repair them. (See Compl., ¶¶ 6-23.) Plaintiff needs to allege what the defects actually were and cannot rely on boilerplate allegations. The Complaint also fails to allege the terms of the written or implied warranty and further fails to allege how such warranty was breached. The Complaint contains no facts only conclusory language.

Based on the foregoing, the Court SUSTAINS the demurrer to the First Cause of Action with leave to amend.

Second Cause of Action – Violation of Business and Professions Code § 17200

To state a cause of action under the UCL, a private plaintiff must allege facts demonstrating: (1) the defendant engaged in an unlawful, unfair, or fraudulent business act or practice; and (2) the plaintiff has standing by having suffered injury in fact and lost money or property as a result of the unfair competition. (*Boschma v. Home Loan Ctr., Inc.* (2011) 198 Cal.App.4th 230, 251-254; Bus. & Prof. Code, § 17204.)

Defendants demur to the Second Cause of

Action for violation of Business and Professions Code section 17200 on the grounds that it fails to allege facts sufficient to state a cause of action.

Defendants argue the UCL claim fails for lack of particularity, contending it consists of legal conclusions and statutory recitations without identifying when, how, or by whom the alleged misconduct occurred. Defendants assert the “fraudulent” prong allegations are especially deficient because Plaintiff pleads no specific misrepresentation, omission, or justifiable reliance. Defendants further argue Plaintiff lacks standing for injunctive relief because she purchased a single used vehicle and alleges no likelihood of recurring or ongoing harm. Defendants also contend the claim fails because Plaintiff has an adequate remedy at law, citing authority that Song-Beverly remedies are adequate to redress the same warranty-based grievance.

In opposition, Plaintiff

responds that the Complaint identifies specific conduct—that Dealer failed to properly diagnose the vehicle, installed remanufactured or reconditioned components inferior to OEM parts, and installed components it knew would not correct the vehicle’s mechanical issues—and alleges resulting diminution in value and economic injury sufficient to plead injury in fact and loss of money or property for standing. Plaintiff argues that any heightened particularity requirement applies only to the fraudulent prong and does not defeat the separately pleaded unlawful and unfair theories. Plaintiff further contends the Complaint alleges ongoing conduct supporting prospective injunctive relief, and that Defendants’ adequate-remedy-at-law argument is inconsistent with their position that Plaintiff cannot obtain Song-Beverly relief.

The Court agrees with Defendants and finds that the Complaint fails to allege sufficient facts to state a cause of action for violation of Business and Professions Code section 17200. The Complaint’s allegations here are generic and conclusory, while statutory causes of action must be pleaded with particularity. (See Compl., ¶¶ 24-29; *Covenant Care, Inc.*, supra, 32 Cal.4th at p. 790.) Moreover, Plaintiff fails to allege facts demonstrating actual reliance for purposes of the fraudulent prong. (*Kwikset Corp. v. Superior Ct.* (2011) 51 Cal.4th 310, 326.) Since the Court sustained the demurrer to the First cause of action, the Complaint fails to allege a basis under the unlawful prong. Furthermore, Plaintiff alleges only being a one-time purchaser and alleges no facts showing a likelihood of future harm to her, so her request for prospective injunctive relief is unsupported.

Accordingly, the Court SUSTAINS the demurrer to the Second Cause of Action with leave to amend.

Third Cause of Action – Negligent Repair

To state a cause of action for negligent repair, the plaintiff must allege facts demonstrating a duty of care, breach of that duty, and causation of the resulting injury. (See *Seo v. All-Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1202.)

Defendants

demur to the Third Cause of Action for negligent repair on the grounds that it fails to state facts sufficient to constitute a cause of action. Defendants argue the negligent repair claim against Penske is pleaded without factual specificity, merely parroting the elements of duty, breach, and causation without identifying any particular negligent act, repair visit, or standard of care violated. Defendants cite *Berkley v. Dowds* for the requirement that a plaintiff allege facts explaining how the conduct caused the injury. Defendants further argue the claim is barred by the economic loss doctrine because Plaintiff alleges only economic losses, without physical injury or property damage. Relying on *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905 and *Rattagan v. Uber Techs., Inc.* (2024) 17 Cal.5th 1, Defendants contend tort recovery for purely economic loss is precluded absent an independent duty. Defendants also argue the narrow Jimenez “component exception” does not apply because Plaintiff’s claim is against a repair facility, not a product manufacturer, and no discrete component is alleged.

In opposition, Plaintiff

responds that the Complaint identifies the repair conduct at issue—failure to properly diagnose the vehicle and installation of inferior or defective components—along with Dealer’s duty to exercise ordinary care, breach of that duty, and resulting harm, and argues that a pleading need only allege the facts constituting the cause of action, not the evidence, citing *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367. Plaintiff contends the economic loss doctrine does not bar the claim because it distinguishes claims arising from the sale of defective goods from claims based on the negligent performance of services, citing *North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764. Plaintiff frames the claim as one for negligent performance of repair services rather than breach of the written

warranty and argues Defendants have not established that the doctrine bars the claim as a matter of law.

The Court agrees with Defendants and finds that the Complaint fails to allege sufficient facts to state a cause of action for negligent repair. The Complaint's allegations for this cause of action are conclusory and largely devoid of facts. (Compl., ¶¶ 45-49.) As noted above, the Complaint does not allege what the defects are or what was repaired. (Compl., ¶¶ 6-12.)

Moreover, the Court agrees with Defendants that the economic loss rule bars this cause of action as currently alleged. The Complaint alleges no facts indicating physical injuries, damage to property, or violation of some other tort-based duty. Plaintiff's claims thus far are for economic injury only, such as diminished value and repair-related losses, which the economic loss rule prohibits. (Compl., ¶¶ 6-12, 22, 45-49; *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.)

Therefore, the Court SUSTAINS the demurrer to the Third Cause of Action with leave to amend.

CONCLUSION

The Court SUSTAINS Defendants Jaguar Land Rover North America, LLC and JLR Puente Hills LLC dba Penske Jaguar Land Rover Puente Hills' Demurrer to the First, Second, and Third Causes of Action of the Complaint with 20 days' leave to amend.

Defendants are ordered to give notice of the Court's ruling within five calendar days of this order.